

NAPCS Unionization Research — State — Charter Sector Overview

New Jersey — PERC (NJ) Jurisdiction — May 2026

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Section 1: State Overview

State	New Jersey
Labor Board	PERC (NJ) — Public Employment Relations Commission of New Jersey
Governing Law	N.J.S.A. 18A:36A (NJ Charter School Law); N.J.S.A. 34:13A-1 et seq. All NJ charter schools are public schools; all employees are public employees.
Federal NLRB Jurisdiction	PERC (NJ) has exclusive jurisdiction. Federal NLRB does not apply.
Right-to-Work	NOT a Right-to-Work State — New Jersey has no right-to-work statute. (NJ charter school employees are public employees under PERC(NJ) jurisdiction (EERA). Right-to-work statutes apply only to private-sector NLRA employers. Not applicable to NJ charter schools.)
For-Profit Operator Status	For-profit EMO management contracts permitted under state law
Card-Check Available	YES — N.J.S.A. 34:13A — majority authorization cards sufficient without election. NJEA uses card-check almost exclusively.
Registry Sweep	COMPLETE — April 2026 (Registry v7) — 86 charter schools searched
Research Window	April 2026 (initial); May 2026 (reconciliation session)

Section 2: Charter Sector Landscape

Total charter schools in New Jersey: 86 (Charter School Registry v133). Unionization census figures reflect confirmed organized schools as of the data currency date.

Category	Schools	% of Total	Notes
Total Organized Charter Schools in New Jersey	17	20.0%	Active UNIONIZED NAPCS-scope schools. Excludes 1 closed school. PERC(NJ) jurisdiction — all NJ charters are public employers under N.J.S.A. 18A:36A.
Independently Organized (CONFIRMED)	17	20.0%	Includes Marion P. Thomas (2 rows / 1 employer). 15 NJEA-affiliated, 1 AFT-NJ (Englewood), 1 Independent (New Horizons). All PERC(NJ) certifications.
Decertified / Closed (formerly organized)	1	1.2%	Academy for Urban Leadership Perth Amboy — charter revoked, closed June 30, 2025.
Total Charter Schools in New Jersey	85	100%	Source: Charter School Registry v50 (NCES/ELSI 2024-25; 85 open NJ charter schools as of May 2026).

Charter Sector Enrollment

Total Charter Enrollment	63,562 students — 4.6% of state K–12 enrollment (1,394,971 total K–12 students)
Students in CMO/EMO-Affiliated Charter Schools	28,015 students in network-affiliated schools — 44.1% of total charter enrollment

Students in Organized Charter Schools	0 students documented
Data Sources	Charter enrollment: NCES ELSI 2024–25 / Charter School Registry v133. Total K–12 state enrollment: NCES ELSI 2024–25 (all public schools). Both figures from the same source and year.

Section 3: Charter Management Organizations & Education Management Organizations

Charter Management Organizations (CMOs) are nonprofit networks. Education Management Organizations (EMOs) are for-profit management companies. Data sourced from Charter School Registry v133. Union penetration reflects confirmed organized schools as of the data currency date.

CMO / EMO Name	Type	State Campuses	National Campuses †	Organized in State	Total Enrollment
iLearn Schools	CMO	4	4	—	5,629
College Achieve Public Schools (CAPS)	CMO	3	3	—	3,782
Seton Education Partners / Brilla	CMO	1	1	—	362
Great Oaks Legacy Charter School	CMO	1	1	—	2,169
LEAP Social Enterprise Inc.	CMO	1	1	1	1,540
Uncommon Schools / North Star Academy	CMO	1	2	—	6,714
KIPP New Jersey (KIPP Team and Family Schools Inc.)	CMO	1	1	—	6,406
Philip's Academy	Network‡	2	—	—	1,413
TOTAL — All CMO/EMO Schools in New Jersey		14		1 organized — 1,540 students in organized network schools (2.4% of total charter enrollment)	

† National Campuses reflects total campuses operated by this network across all states, as reported in Charter School Registry v133. Provides context for networks operating in multiple states.

‡ Network (type unclassified) = operator present in Charter School Registry v133 but not yet classified in CMO Reference data. Contact registry project to add classification for these records.

7 CMO (nonprofit), 1 network (type unclassified). Approximately 72 schools operate independently with no CMO/EMO affiliation. Source: Charter School Registry v133.

Section 4: Legal Framework & Sector Overview

Findings are based on research as of May 2026.

1: Legal & Jurisdictional Framework N.J.S.A. 18A:36A (NJ Charter School Law); N.J.S.A. 34:13A-1 et seq. All NJ charter schools are public schools; all employees are public employees. New Jersey is not a right-to-work state (New Jersey has no right-to-work statute.). PERC (NJ) has exclusive jurisdiction. Federal NLRB does not apply to charter schools in New Jersey. Card-check recognition is available under N.J.S.A. 34:13A — majority authorization cards sufficient without election. NJEA uses card-check almost exclusively..

2: Charter Sector Structure

New Jersey operates 86 open-enrollment charter schools, enrolling approximately 63,562 students. 8 charter management organizations and education management organizations operate in New Jersey. The largest networks by campus count are iLearn Schools (4 campuses in state), College Achieve Public Schools (CAPS) (3 campuses in state), Philip's Academy (2 campuses in state). Approximately 72 schools operate independently with no CMO or EMO affiliation. Network-level detail, including campus counts and total enrollment, appears in Section 3 above.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

Press coverage of NJ charter school union organizing is sparse. No press reports were found documenting organizing campaigns, disputes, or strikes at any of the 21 NAPCS-listed NJ charter schools. The only press confirmation of union status in the dataset is Soaring Heights Charter School — Hudson County View (Sept 30, 2024) described the school as "currently the only unionized" Hudson County K-8 charter school. The absence of press coverage is consistent with the NJEA card-check organizing model: certifications require no public election campaign, generate no newsworthy conflict, and leave a minimal open-source footprint. Press monitoring is not a reliable early-warning system for organizing activity in NJ.

Stakeholder Communications

No NJEA press releases or formal communications documenting NJ charter school organizing victories were found. This is consistent with NJEA's pattern of conducting charter organizing quietly via card-check. OPRA requests to PERC (NJ) will provide the authoritative certification record. No employer-side communications (board minutes, authorizer filings, employer PERC petitions) were found in web search. The Marion P. Thomas CBA preamble confirms a collaborative employer-union framing, consistent with the broader non-adversarial pattern.

Authorizer & State Agency Positions

All 21 NAPCS NJ schools are authorized by NJDOE — the sole NJ charter authorizer. NJDOE has not publicly addressed charter school unionization as a distinct policy matter. The OSC (Office of the State Comptroller) investigation of College Achieve / CAPS Inc. (three non-NAPCS schools) is unrelated to labor relations.

Coalition & Advocacy Positions

New Jersey Public Charter Schools Association (NJPCSA) is the statewide charter advocacy voice. NJPCSA has not publicly addressed unionization of member schools in available web sources. ESCNJ member list includes multiple NAPCS-listed NJ charter schools.

Section 6: Contract & CBA Access Registry

PERC (NJ) public contracts portal. Direct PDF links may require a records request for full text.

School / Network	Union	CBA Status & Term	Contract Access
Marion P. Thomas CS (both campuses)	Marion P. Thomas Education Association / NJEA	CONFIRMED Unknown (PDF 403)	PERC (NJ) public contracts portal — OPRA required
Paterson CS for Science & Technology	Paterson Charter Education Association / NJEA	CONFIRMED 2017 (current period unknown)	PERC (NJ) public contracts portal — OPRA required
Classical Academy Charter School	Classical Academy CS Association / Independent	CONFIRMED 2017 (current period unknown)	PERC (NJ) public contracts portal — OPRA required
Learning Community Charter School	Learning Community CS Education Association / NJEA	CONFIRMED Unknown	PERC (NJ) public contracts portal — OPRA required

Englewood on the Palisades CS	Englewood CS Teachers Association / AFT-NJ	EXPIRED Expired 2015 — no successor	PERC (NJ) public contracts portal
13 remaining confirmed schools	Various NJEA-affiliated EAs	NONE FOUND N/A	PERC (NJ) portal searched May 2026